

Milwaukee County Case Number 2005CF001130 State of Wisconsin vs. Lakina Shauntea Stutts

Case summary

Filing date 03-02-2005	Case type Criminal	Case status Closed	
Defendant date of birth 07-29-1980	Address 2645 N. 37th Street, Milwaukee, WI	Branch ID 38	DA case number 05XF1446

Charges

Responsible official Wagner-38, Jeffrey A.	Prosecuting agency District Attorney	Prosecuting agency attorney Liegel, Christopher Allen	Printable version
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Defendant owes the court: \$0.00

Count no.	Statute	Description	Severity	Disposition
1	948.02(2)	2nd Degree Sexual Assault of Child	Felony C	Guilty / No Contest

The Defendant was charged with the following offense:

Count	Statute cite	Description	Severity	Offense date	Plea
1	948.02(2)	2nd Degree Sexual Assault of Child	Felony C		Guilty on 07-08-2005

On 07-08-2005 there was a finding of:

Action	Court official	Notes
Guilty / No Contest	Wagner-38, Jeffrey A.	

On 09-09-2005 the following was ordered:

Sentence	Time	Begin date	Notes
Costs			Costs, assessments and v/w surcharges. Provide DNA sample and pay costs.
Sentence	Time	Begin date	Notes
State Prison	14 Months		
Sentence	Time	Begin date	Notes
Extended Supervision	26 Months		Imprisonment of 40 months in WSP with credit for 19 days time served. Confinement of 14 months and extended supervision of 26 months. Conditions: May not carry or possess any firearms/body armor. Absolutely not contact with victim or his family. Must register as a sex offender. Voting privileges are suspended during the length of this sentence. Not eligible for the challenge incarceration program or the earned release program. If not a US citizen deportation is possible.

Defendant

Defendant name	Date of birth	Sex	Race
Stutts, Lakina Shauntea	07-29-1980	Female	African American

Address (last updated

03-02-2005)

2645 N. 37th Street,
Milwaukee, WI

JUSTIS ID
62005309

Fingerprint ID

Attorneys

Attorney name	Entered
Herro, Brian Andrew	03-11-2005

Court record

Date	Event	Court official	Court reporter	Amount
11-16-2017	Records of prosec. are converted data. See file.			
07-22-2011	Records scanned			
09-28-2005	Notes			
	Additional text:			
	INVOICE			
	FORWARDED TO ACCOUNTS PAYABLE DEPARTMENT, IN THE AMOUNT OF \$540.00 to Dr. Rawski for services on 05-23, 05-25, 05-31 & 06-06-05.			
	COPY IN FILE.pg			
09-20-2005	Transcript			
	Additional text:			
	Original Transcript commencing September 9, 2005 SENTENCING received and filed. (30 Pages)			
09-15-2005	Other papers			
	Additional text:			
	Clerk: CN			
	PSI received into inventory this date			
	Box P-59			
09-12-2005	Other papers			
	Additional text:			
	Clerk: CN			
	PSI received into inventory this date			
	Box P-59			
09-12-2005	Notes			
	Additional text:			
	Judgment of conviction issued. mjf			
09-12-2005	Cash bond applied			\$347.00
	Additional text:			
	05A 020992			
09-09-2005	Dispositional order/judgment	Wagner-38, Jeffrey A.		
09-09-2005	Sentencing hearing	Wagner-38, Jeffrey A.	Sebold, Judy	

Date	Event	Court official	Court reporter	Amount
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Additional text:

Defendant Lakina Shauntea Stutts in court with attorney Brian A Herro. Chris Liegel appeared for the State of Wisconsin. Sentencing proceeded. Presentence Investigation reviewed. Additions and corrections were made. Statements by state, defense; defendant makes no statement. Additional statements by Latonia H.

State will submit a Stipulation and Order as to restitution within the next 60 days.

The Court sentenced the defendant to serve a term of IMPRISONMENT of 40 MONTHS in the Wisconsin State Prisons, credit for 19 days time served. CONFINEMENT of 14 MONTHS and EXTENDED SUPERVISION of 26 MONTHS with the following conditions:

-Pay all costs, assessments and victim/witness surcharges.

-Provide a DNA sample for the Data Bank and pay all appropriate costs.

The defendant is advised as a convicted felon she may not carry or possess any firearms/body armor.

ABSOLUTE NO CONTACT WITH VICTIM OR HIS FAMILY.

Defendant must register as a sex offender.

The court advises the defendant that voting privileges are suspended during the length of this sentence.

The defendant is given a written explanation of the determinate sentence, and advised of her appeal rights by defense counsel.

The defendant is not eligible for the Challenge Incarceration Program.

The defendant is not eligible for the Earned Release Program.

Defendant remanded. Is

07-31-2005	Judicial/Court Official Transfer	Wagner-38, Jeffrey A.		
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07-08-2005	Plea hearing	Hansher, David A.	Malkiewicz, Thomas	
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Additional text:

Defendant Lakina Shauntea Stutts in court with attorney Brian A Herro. Chris Liegel appeared for the State of Wisconsin. Defendant changes plea to GUILTY. Defendant examined as to his plea, advised of his Constitutional rights and the maximum penalty. Court found that defendant freely, voluntarily and intelligently waived his rights. Plea questionnaire received and filed. Parties stipulate to the complaint as a factual basis to sustain defendant's plea. Court found defendant guilty as charged in the information and ordered a Judgment of Conviction be entered on the record. Defendant is advised he/she is a convicted felon and may not possess any firearms. Defendant further advised that if he/she is not a US citizen deportation is possible. PSI was ordered. Case set for sentencing on 9/9/05 at 8:30am Br. 38. Parties advised that effective 8/1/05 case will be reassigned to Judge Jeffrey Wagner, Br. 38, due to judicial rotation. Bail remains the same. -- lck

06-10-2005	Further proceedings	Hansher, David A.	Leiberg, Mary	
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Date	Event	Court official	Court reporter	Amount
	Additional text: Defendant Lakina Shauntea Stutts in court with attorney Brian A Herro. Chris Liegel appeared for the State of Wisconsin. Return on doctor's report. No challenge by either party. Special plea withdrawn by defense. Case adjourned for projected guilty plea on 7/8/05 at 8:30am Br. 42. -- lck			
06-07-2005	Report	Hansher, David A.		
	Additional text: Report as to special plea received and filed. -- lck			
05-02-2005	Other in-court activity	Hansher, David A.	Leiberg, Mary	
	Additional text: Defendant Lakina Shauntea Stutts in court with attorney Brian A Herro. Chris Liegel appeared for the State of Wisconsin. Case set today for motion hearing. Defense now wishes to amend plea and enter plea of NOT GUILTY and NOT GUILTY BY REASON OF MENTAL DEFECT. Court appoints Dr. Robert Rawski to conduct examination. Order for examination signed and filed. Motions to suppress to be rescheduled, if necessary, after return of doctor's report. Case adjourned for return on doctor's report 6/10/05 at 1:30PM Br. 42. -- lck			
03-24-2005	Arraignment	Hansher, David A.	Leiberg, Mary	
	Additional text: Defendant Lakina Shauntea Stutts in court with attorney Brian A Herro. Chris Liegel appeared for the State of Wisconsin. Arraignment held. Defense acknowledges report, waives reading and enters a plea of NOT GUILTY. Defense to file any motions within 20 days. Case adjourned for Miranda-Goodchild hearing on 5/2/05 at 1:30PM Br. 42. Bail to remain the same. -- lck			
03-24-2005	Demand for discovery and inspection	Hansher, David A.		
	Additional text: and motion to suppress statements, received and filed on behalf of the defense. State's demand for discovery and inspection and Motion for Testing of Defendant for HIV Infection and Certain Diseases, received and filed. -- lck			
03-15-2005	Cash bond posted			\$500.00
	Additional text: 05RM014309			
03-11-2005	Waiver of preliminary hearing	Flynn, Grace	Caliva, Dianne	

Date	Event	Court official	Court reporter	Amount
	Additional text: Defendant Lakina Shauntea Stutts in court with attorney Brian A Herro. Chris Liegel appeared for the State of Wisconsin. sbs Defendant waived Preliminary Hearing. Preliminary Hearing Questionnaire and Waiver received and filed. Court found probable cause and bound defendant over for trial. Defendant is assigned this case is assigned to Judge Hansher, Branch 42. Original Information filed. Copy given to defense counsel. Court ordered case adjourned for Scheduling Conference on 3/24/05 at 8:30am, Branch 42.			
03-02-2005	Change of address notification			
	Additional text: ORIGINAL ADDRESS INFO for Lakina Shauntea Stutts Prim. Addr. : 9530 W Fond Du Lac Av Sec. Addr. : City : Milwaukee State : WI Zip : 532251636 Country :			
03-02-2005	Notes	Flynn, Grace	Digital Recording	
	Additional text: Preliminary hearing scheduled for 03-11-2005 at 08:30 am.			
03-02-2005	Cash bond set for Stutts, Lakina Shauntea	Flynn, Grace	Digital Recording	\$500.00
	Additional text: Signed and filed, Written No Contact Order. Defendant to have no contact with U.S.R-H. Court ordered no unsupervised contact with anyone under the age of 18 with exception of relatives and her own children. Court advised defendant that failure to comply with conditions of bail may result in an additional charge of bail jumping.			
03-02-2005	Initial appearance	Flynn, Grace	Digital Recording	

Date	Event	Court official	Court reporter	Amount
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Additional text:

Defendant Lakina Shauntea Stutts in court with attorney Jeffrey A Schwarz. Defendant Lakina Shauntea Stutts in custody. Benbow P Cheesman appeared for the State of Wisconsin.

CD #05-ICCR

COUNTER # 11:26

Defendant is advised this case is assigned to Judge Hansher, Branch 42. Defendant given a copy of the complaint and advised of maximum penalties, right to counsel and right to a preliminary hearing. Court reviewed the complaint and found probable cause to hold defendant for further proceedings. DEFENDANT IS INDIGENT AND PUBLIC DEFENDER WILL PROVIDE COUNSEL. Case is adjourned for preliminary hearing in Branch PE.

kmp

03-02-2005 Complaint filed

Total receivables

Court assessments	Adjustments	Paid to the court	Probation/other agency amount	Balance due to court	Due date
\$347.00	\$0.00	\$347.00	\$0.00	\$0.00	